

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

-----x 09 Civ. 8134 (SHS)
ANTHONY CACERES,

Plaintiff,

-against-

AMENDED COMPLAINT

JURY DEMAND

THE CITY OF NEW YORK, LIEUTENANT JOSEPH
KOURAKOS, POLICE OFFICER JOSE ROSARIO
(SHIELD# 2128), POLICE OFFICER OSCAR DIAZ
(SHIELD# 3012), POLICE OFFICER CARL BENNETT
(SHIELD # 29180), POLICE OFFICER ELVIN
PICHARDO (SHIELD# 4287), POLICE OFFICER
YEISON NINO (SHIELD# 27796), POLICE OFFICER
MICHAEL RODRIGUEZ (SHIELD # 27618), POLICE
OFFICER JAMES GILSON (SHIELD# 8085) and
POLICE OFFICER JOHN DOE 1-5,
Defendants.

-----x
ANTHONY CACERES, by his attorney(s), THE LAW OFFICES OF WALE MOSAKU,
P.C., complaining of the defendants, THE CITY OF NEW YORK, LIEUTENANT
JOSEPH KOURAKOS, POLICE OFFICER JOSE ROSARIO (SHIELD# 2128),
POLICE OFFICER OSCAR DIAZ (SHIELD# 3012), POLICE OFFICER CARL
BENNETT (SHIELD # 29180), POLICE OFFICER ELVIN PICHARDO (SHIELD#
4287), POLICE OFFICER YEISON NINO (SHIELD# 27796), POLICE OFFICER
MICHAEL RODRIGUEZ (SHIELD # 27618), POLICE OFFICER JAMES GILSON
(SHIELD# 8085) and POLICE OFFICER JOHN DOE 1-5 of the New York City Police
Department (collectively referred to as the Defendants), upon information and belief
alleges as follows:

NATURE OF THE ACTION

1. This is an action at law to redress the deprivation of rights secured to the plaintiff under color of statute, ordinance, regulation, custom, and/or to redress the deprivation of rights, privileges, and immunities secured to the plaintiff by the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States, and by Title 42

U.S.C. § 1983 [and § 1985], [and arising under the law and statutes of the State of New York].

JURISDICTION

2. The jurisdiction of this Court is invoked under 28 U.S.C. §1343(3), this being an action authorized by law to redress the deprivation of rights secured under color of state and city law, statute, ordinance, regulation, custom and usage of a right, privilege and immunity secured to the plaintiff by the Fourteenth Amendment to the Constitution of the United States. Jurisdiction of this court exists pursuant to 42 USC §1983 and under the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution.
3. All causes of action not relying exclusively on the aforementioned federal causes of action as a basis of this Court's jurisdiction are based on the Court's supplemental jurisdiction, pursuant to 28 U.S.C. §1367, to hear State law causes of action. The events, parties, transactions, and injuries that form the basis of plaintiff's federal claims are identical to the events, parties, transactions, and injuries that form the basis of plaintiff's claims under applicable State and City laws.
4. As the deprivation of rights complained of herein occurred within the Southern District of New York, venue is proper in this district pursuant to 28 U.S.C. §§1391 (b) and (c).

THE PARTIES

5. During all times material to this complaint, plaintiff was, and he still is, a resident of the City of New York, presently residing in New York County, City and State of New York. Plaintiff is a Hispanic male of full age.
6. At all relevant times, defendants LIEUTENANT JOSEPH KOURAKOS, POLICE OFFICER JOSE ROSARIO (SHIELD# 2128), POLICE OFFICER OSCAR DIAZ (SHIELD# 3012), POLICE OFFICER CARL BENNETT (SHIELD # 29180), POLICE

OFFICER ELVIN PICHARDO (SHIELD# 4287), POLICE OFFICER YEISON NINO (SHIELD# 27796), POLICE OFFICER MICHAEL RODRIGUEZ (SHIELD # 27618), POLICE OFFICER JAMES GILSON (SHIELD# 8085) and POLICE OFFICER JOHN DOE 1-5, of the New York City Police Department (collectively referred to as defendant officer(s)), were upon information and belief, and still are, law enforcement officers in the employ of the 34th precinct of the police department of the City of New York.

7. At all times herein, the defendant officers were employed as law enforcement officers of the City of New York, State of New York, and were acting under the color of their official capacity and their acts were performed under color of the statutes and ordinances of the City of New York and/or the State of New York. The defendant officers were the servants, agents, and employees of their co-defendant, the City of New York, so that their acts are imputed to the City of New York and its Police Department.
8. At all relevant times, the defendant City of New York was/is a municipal corporation of the State of New York, and was/is the employer of the defendant officers, through it's Police Department, namely New York City Police Department and the actions of the defendant officers complained of herein were done as part of the custom, practice, usage, regulation and/or direction of the City of New York.
9. Plaintiff sues all defendants in their individual and official capacities.

SATISFACTION OF THE PROCEDURAL PREREQUISITES FOR SUIT

10. All conditions precedent to filing of this action have been complied with; on November 14, 2008, within ninety days after the claims alleged in this complaint arose, a written notice of claim, sworn to by the plaintiff, was served upon the defendant City of New York by personal delivery of the notice in duplicate, to the person designated by law as one to whom a summons issued against such party may be

delivered in an action in the applicable Courts. Plaintiff's claim was assigned Claim No. 2008PI026500.

11. At least thirty days have elapsed since the service of the above-mentioned notices of claim, and adjustment or payment of the claim has been neglected or refused.
12. This action, pursuant to New York State and City Law, has been commenced within one year and ninety days after the happening of the event upon which the claim is based.

FACTUAL ALLEGATIONS COMMON TO THE CAUSES OF ACTION ARISING
OUT OF THE PLAINTIFF'S SEPTEMBER 25, 2008 ARREST

13. On or about September 25, 2008, at approximately 12:30 p.m., at or about the vicinity of the premises known as 565 Academy Street, New York, New York 10034 (hereinafter "subject premises"), the plaintiff was falsely arrested, and/or caused to be arrested without probable cause by the defendant officers, ostensibly for perpetrating the following crimes/offenses: Criminal Sale of Marijuana in the 4th Degree (P.L. 221.40); Resisting Arrest (P.L. 205.30); Unlawful Possession of Marijuana (P.L. 221.05) and Criminal Trespass in the 2nd Degree (P.L. 140.10).
14. On the above-referenced date, at approximately 11:00 a.m., the plaintiff had gone to the above-referenced premises in order to visit a friend, namely Abel Christian, who resided on the 5th floor of the subject building, specifically at 565 Academy Street, #5B, New York, N.Y. 10034.
15. At approximately 12:30 p.m., after visiting with his friend, as the plaintiff was exiting the lobby of the subject premises, he was accosted by the defendant officers.
16. At the above-referenced time, the defendant officers, without any provocation by the plaintiff, thereafter violently assaulted, battered and brutalized the plaintiff for no reason.

17. Without saying a word, the above-referenced officers started to assault the plaintiff. He was punched and kicked in the head, face, body and limbs.
18. The defendant officers subsequently proceeded to break open several mailboxes located within the lobby of the subject premises. Upon information and well-founded belief, the defendant officers did not obtain a warrant prior to breaking open said mailboxes.
19. The defendant officers claimed that they recovered illegal narcotics from one or more of the mailboxes they had unlawfully broken into.
20. According to New York City Police Department ("NYPD") documents, defendant POLICE OFFICER YEISON NINO (SHIELD# 27796) was the officer who allegedly recovered fifty-two (52) bags of marijuana from said mailboxes.
21. However, POLICE OFFICER YEISON NINO (SHIELD# 27796), who, upon information and well-founded belief does not have any memo book entries pertaining to the incident, subsequently testified before the Civilian Complaint Review Board ("CCRB") that he did not recall the incident.
22. The defendant officers also claimed, without any basis or iota of proof, that the plaintiff was the person who had deposited said illegal narcotics within said mailboxes.
23. The defendant officers further claimed that they recovered two (2) bags of marijuana from a person whom they had purportedly observed the plaintiff sell said illegal items to, on the date of the incident.
24. According to the criminal court complaint, defendant POLICE OFFICER JOSE ROSARIO (SHIELD# 2128) swore that defendant POLICE OFFICER JAMES GILSON (SHIELD# 8085) informed him (POLICE OFFICER JOSE ROSARIO (SHIELD# 2128)), that he (POLICE OFFICER JAMES GILSON (SHIELD# 8085)) recovered two (2) bags of marijuana from said person.

25. However, POLICE OFFICER JAMES GILSON (SHIELD# 8085), who, upon information and well-founded belief does not have any memo book entries pertaining to the incident, subsequently testified before the CCRB that he did not recall the incident.
26. The plaintiff strenuously denied said allegations. At the time plaintiff was arrested, he protested to and informed the offending officers that he had committed no crime or offense and offered to prove his innocence. However the offending officers refused to pay any attention to plaintiff's entreaties, and arrested plaintiff in wanton and malicious disregard for the truth.
27. The plaintiff was thereafter transported to the 34th precinct. Upon arrival at the 34th precinct, the plaintiff was taken into a restroom and strip searched by the same officer (described as a Caucasian male, wearing a baseball cap with a "Mets" logo, and appeared to be well-built) who had punched him in the eye.
28. Upon information and well-founded belief, the name of the officer who performed and/or authorized said strip search is defendant LIEUTENANT JOSEPH KOURAKOS.
29. Upon information and well-founded belief, LIEUTENANT JOSEPH KOURAKOS does not have any memo book entries pertaining to the incident involving the plaintiff, nor did he record the strip search of the plaintiff in the precinct command log and/or his memo book as he was supposed to.
30. Nothing illegal was recovered from the plaintiff during said strip search.
31. Following the strip search, the defendant officers, supervised by LIEUTENANT JOSEPH KOURAKOS, proceeded to interrogate the plaintiff, asking him questions, such as where the "guns" and "drugs" were. The plaintiff was also asked where the "bricks" and "burners" were, and also asked "who runs this spot".

32. The plaintiff, not knowing what the defendant officers were referring to, denied any knowledge of any of the above. The above-referenced officers then proceeded to beat, kick and punch the plaintiff again. The plaintiff was later photographed and fingerprinted.
33. Subsequently, the plaintiff was threatened by Police Officer Jose Rosario (Shield # 2128) and the above-referenced Caucasian officer who had punched him in the eye (upon information and well-founded belief, LIEUTENANT JOSEPH KOURAKOS). Specifically, the plaintiff was told that they knew where he lived, and that if he reported the assault, his family would be in danger. The above-referenced officers also tried to induce the plaintiff not to file a complaint by offering him a bribe of \$10,000.00, and told that if he took the money, they would take his name out of the system and let him go. The plaintiff did not accept the offending officers' unlawful offer.
34. The plaintiff was thereafter transported to "Central Booking" located within the New York City Criminal Court, in downtown Manhattan. Upon arrival at "Central Booking". However, due to the obvious and apparent serious injuries that the plaintiff had sustained, the corrections officers at "Central Booking" insisted that the plaintiff be immediately transported to a hospital. It was thus upon the insistence of the corrections officers at "Central Booking" that the plaintiff was eventually taken by an NYPD officer to Columbia Presbyterian Hospital located at 622 West 168th Street, New York, New York 10032, where he was treated in the emergency room.
35. Upon receiving emergency treatment, the plaintiff was taken back to "Central Booking".
36. The plaintiff was later arraigned before a New York City Criminal Court Judge on September 26, 2008, and released upon his own recognizance. The plaintiff walked out of court at approximately 02:00 p.m. that day.

37. On June 15, 2009, all of the charges were dismissed by the Court, on “speedy trial” grounds, based upon the New York County District Attorney’s failure to prosecute the matter.

FACTUAL ALLEGATIONS COMMON TO THE CAUSES OF ACTION ARISING
OUT OF THE PLAINTIFF’S OCTOBER 24, 2008 ARREST

38. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 37 of this complaint as though fully set forth herein.
39. Following the filing of the above-referenced complaint with the CCRB, on or about October 24, 2008, at approximately 02:00 p.m., while the plaintiff was located within the restaurant named “Houng’s Fish Market”, located 109 Dyckman Street, New York, N.Y. 10034, he was approached by NYPD officers, including, upon information and well-founded belief, POLICE OFFICER CARL BENNETT (SHIELD # 29180), POLICE OFFICER MICHAEL RODRIGUEZ (SHIELD # 27618) and POLICE OFFICER JAMES GILSON (SHIELD# 8085).
40. Without an iota of probable cause, the plaintiff, who was seated at a table within said restaurant, was lifted up by the arms by said officers, and held up against a wall. The above-referenced officers then proceeded to illegally search the plaintiff. The above-referenced officers then claimed that they found illegal narcotics, specifically marijuana, on the person of the plaintiff. The plaintiff strenuously denied said allegation.
41. Nevertheless, the plaintiff was arrested and transported to the 34th precinct again by the above-referenced officers. The plaintiff was strip searched at the precinct by the above-referenced officers. Nothing illegal was found upon the person of the plaintiff.
42. The plaintiff was subsequently fingerprinted and photographed, and after a complaint was initiated by POLICE OFFICER CARL BENNETT (SHIELD # 29180), later caused to be arraigned before a

judge at New York City Criminal Court in Manhattan, and charged, upon information and belief, with possession of illegal narcotics, ostensibly for perpetrating the following crimes/offenses: Criminal Sale of Marihuana in the 5th Degree (P.L. 221.10); and Unlawful Possession of Marihuana (P.L. 221.05).

43. Upon arraignment, the plaintiff was again released upon his own recognizance.
44. The above-referenced arrest, false imprisonment and the malicious institution of criminal charges were instigated by LIEUTENANT JOSEPH KOURAKOS, in retaliation for the plaintiff having filed the above-referenced complaint with the CCRB, with respect to the September 25, 2008 incident.
45. Indeed, within the NYPD documents related to the arrest of October 24, 2010, LIEUTENANT JOSEPH KOURAKOS is listed as the “supervisor approving” the arrest.
46. At the above-mentioned time and place, the plaintiff did not commit the above-referenced crimes/offenses he was arrested for, and charged with, and there was absolutely no probable cause for the plaintiff’s arrest, imprisonment and subsequent prosecution.
47. At the above-mentioned time and place, the above-named officers knew and were aware that the plaintiff did not possess the illegal narcotics that the above-named officers claimed they found in his possession. At the above-mentioned time and place, all and/or some of the above-named officers in fact maliciously concocted the above-referenced allegations against the plaintiff.
48. On June 15, 2009, all of the charges were dismissed by the Court, on “speedy trial” grounds, based upon the New York County District Attorney’s failure to prosecute the matter.

FIRST CAUSE OF ACTION: FALSE ARREST AND FALSE IMPRISONMENT

49. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 48 of this complaint as though fully set forth herein.
50. The above-described respective arrest(s), detention(s) and imprisonment of plaintiff were without just or probable cause and without any warrant or legal process directing or authorizing the plaintiff's arrest(s) or subsequent detention(s).
51. As a result of plaintiff's above-described false arrest(s) detention(s) he has been caused to suffer humiliation, great mental and physical anguish, embarrassment and scorn among those who know him, was prevented from attending to his necessary affairs, and has been caused to incur legal expenses, and has been otherwise damaged in his character and reputation.
52. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.
53. The defendant officers were at all material times acting within the scope of their employment, and as such, the defendant City is vicariously liable for the defendant officers acts as described above.
54. This action falls within one or more of the exceptions of the New York State Civil Practice Law and Rules §1602.

SECOND CAUSE OF ACTION: MALICIOUS PROSECUTION

55. By this reference, the plaintiffs incorporates each and every allegation and averment set forth in paragraphs 1 through 54 of this complaint as though fully set forth herein.
56. There was absolutely no probable cause for the defendant officers to arrest the plaintiff for the above-referenced crimes at the above-referenced scene(s) of the arrest(s).
57. The commencement and prosecution of the criminal judicial proceedings against the plaintiff, including the arrest(s), the imprisonment(s), and the charges against the plaintiff were

committed by or at the insistence of the defendants without probable cause or legal justification and with malice.

58. The criminal judicial proceedings initiated against the plaintiff were terminated in the plaintiff's favor.
59. The arrest(s), the imprisonment(s) and prosecution(s) of the plaintiff were malicious and unlawful because the plaintiff had committed no crime and there was no probable cause to believe that the plaintiff had committed crimes.
60. The defendants actions were intentional, unwarranted and in violation of the law. The individual defendants had full knowledge that the charges made before the Court against the plaintiff were false and untrue.
61. As a consequence of the malicious prosecution by the defendants, the plaintiff incurred attorney's fees, suffered humiliation, mental anguish, loss of income, and his constitutional rights were violated.
62. Plaintiff hereby demands compensatory damages and punitive damages, in an amount to be determined at trial, against each of the defendants, individually and severally.
63. The defendant officers were at all material times acting within the scope of their employment, and as such, the defendant City is vicariously liable for the defendant officers acts as described above.
64. This action falls within one or more of the exceptions of the New York State Civil Practice Law and Rules §1602.

THIRD CAUSE OF ACTION AGAINST ALL DEFENDANTS:

DEPRIVATION OF CIVIL RIGHTS

65. Plaintiff repeats and realleges paragraphs 1 through 64 as if each paragraph is repeated verbatim herein.
66. The defendant police officers acted under color of law, in their official capacity and their acts were performed under color of the statutes and ordinances, customs and practices of the defendant City of New York. The allegations in this paragraph are likely to have

evidentiary support after a reasonable opportunity for further investigation or discovery.

67. Acting under color of law and pursuant to official policy, practice, or custom, defendant City of New York intentionally, knowingly, negligently and recklessly failed to instruct, supervise, control, and discipline, on a continuing basis, defendant police officers in their duties to refrain from unlawfully and maliciously arresting, imprisoning, prosecuting, assaulting, battering, using excessive force and inflicting summary punishment on innocent members of the public. The allegations in this paragraph are likely to have evidentiary support after a reasonable opportunity for further investigation or discovery.
68. Acting under color of law and pursuant to official policy, practice, or custom, defendant City of New York intentionally, knowingly, negligently and recklessly failed to instruct, train, and supervise defendant police officers on a continuing basis in the correct procedure for making an arrest. The allegations in this paragraph are likely to have evidentiary support after a reasonable opportunity for further investigation or discovery.
69. Defendant City of New York had knowledge, or, had they diligently exercised their duties to instruct, supervise, control, and discipline on a continuing basis, should have had knowledge that the wrongs which were done, as heretofore alleged, were about to be committed. Defendant City of New York had power to prevent or aid in preventing the commission of said wrongs, could have done so by reasonable diligence, and intentionally, knowingly, negligently or recklessly failed or refused to do so. The allegations in this paragraph are likely to have evidentiary support after a reasonable opportunity for further investigation or discovery.
70. Defendant City of New York, directly or indirectly, under color of law, approved or ratified the unlawful, deliberate, malicious, reckless,

and wanton conduct of defendant police officers heretofore described. The allegations in this paragraph are likely to have evidentiary support after a reasonable opportunity for further investigation or discovery.

71. The conduct of the defendants deprived plaintiff of the following rights, privileges and immunities secured to him by the Constitution of the United States:

(a) The right of plaintiff to be secure in his person and effects against unreasonable search and seizure under the Fourth and Fourteenth Amendments to the Constitution of the United States.

(b) The right of the plaintiff to be promptly informed of the nature and cause of the accusation against him, secured to him under the Sixth and Fourteenth Amendments to the Constitution of the United States.

(c) The right of plaintiff not to be deprived of life, liberty, or property without due process of law, and the right to the equal protection of the laws, secured to him by the Fifth and Fourteenth Amendments to the Constitution of the United States.

(d) The right to be free from unreasonable detention and/or continued detention without probable cause in that plaintiff was detained.

(e) The right to be free from the use of excessive force in that the plaintiff was assaulted, battered and seriously injured by the defendant officers.

72. As a result of the actions of the defendants, plaintiff was deprived of his rights, privileges, and immunities secured by the United States Constitution, in particular, the Fourth, Fifth, and Fourteenth Amendments, in contravention of 42 USC §1983 and the laws of New York State, and New York City without just or legal cause when defendant City, by its employees and/or agents unlawfully arrested and imprisoned plaintiff thereby depriving him of his liberty without due process of law.

73. The defendant police officers were the actual agents of the defendant City of New York and were following the customs, practices,

ordinances and/or regulations of the City of New York when they violated plaintiff's constitutional and civil rights and the City of New York is therefore responsible for their acts and liable to the plaintiff for the damages he suffered. The allegations in this paragraph are likely to have evidentiary support after a reasonable opportunity for further investigation or discovery.

74. In doing the acts and things complained of herein, the defendant officers were conspirators engaged in a scheme and conspiracy designed and intended to deny and deprive the plaintiff of rights guaranteed to him under the constitution and laws of the United States, and by so conspiring, the defendant police officers acted with malice; acted in their personal interests; acted outside of the scope of their employment; were motivated by an independent personal stake in the arrest and prosecution of the plaintiff; and acted with intentional disregard for the plaintiff's rights under the U.S. constitution, and 42 U.S.C. §§ 1982, 1983 and 1985, et seq. The allegations in this paragraph are likely to have evidentiary support after a reasonable opportunity for further investigation or discovery.
75. The actual principal/agent relationship between the defendant City and the defendant police officers was created by the fact said defendant officers were employees of defendant City, and the City had the right to, and in fact did regulate and control the activities and conduct of the defendant officers. The allegations in this paragraph are likely to have evidentiary support after a reasonable opportunity for further investigation or discovery.
76. The defendants' actions were vicious, wicked, cold-hearted, intentional, malicious, unwarranted and in violation of the law. The individual defendants had full knowledge that the charges made before the Court against the plaintiff were false and untrue.

FOURTH CAUSE OF ACTION AGAINST ALL DEFENDANTS: ASSAULT AND BATTERY

77. Plaintiff repeats and realleges paragraphs 1 through 76 as if each paragraph is repeated verbatim herein.
78. At the time of plaintiff's 09/25/2008 arrest by defendant police officers, plaintiff did not challenge nor resist defendant police officers, nor engage in any threatening behavior towards said defendant police officers.
79. However, defendant officers assaulted plaintiff, battered plaintiff, and subjected plaintiff to excessive force and summary punishment
80. Defendant police officers were at all material times acting within the scope, of their employment.
81. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.
82. This action, upon information and belief, falls within one or more of the exceptions of CPLR 1602.

WHEREFORE, plaintiff respectfully prays for judgment as follows:

1. For compensatory damages against each defendant in an amount to be proven at trial;
2. For exemplary and punitive damages against each defendant in an amount to be proven at trial;
3. For costs of suit herein, including plaintiff's reasonable attorney's fees; and
4. For such other and further relief as the court deems proper.

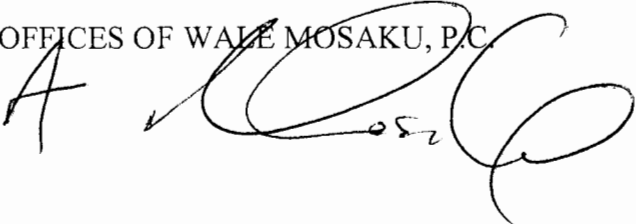
DEMAND FOR TRIAL BY JURY

Pursuant to Rule 38 (b) of the Federal Rules of Civil Procedure, plaintiff demands a trial by jury.

Dated: Brooklyn, New York
March 12, 2010

LAW OFFICES OF WALE MOSAKU, P.C.

By:



Wale Mosaku, Esq. (AM 5872)
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Assistant Corporation Counsel
City of New York Law Department
Attorney(s) for Defendants
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Lieutenant Joseph Kourakos
Defendant Pro Se
NYPD Organized Crime Control Bureau ("O.C.C.B.")
1 Police Plaza, Room 1310
New York, N.Y. 10038

Police Officer Yeison Nino (Shield # 27796)
Defendant Pro Se
Narcotics Borough Brooklyn North
1 Police Plaza, Room 1100
New York, N.Y. 10038

Police Officer James Gilson (Shield # 8085)
Defendant Pro Se
NYPD 34 Precinct
4295 Broadway
New York, N.Y. 10033

Police Officer Michael Rodriguez (Shield # 27618)
Defendant Pro Se
NYPD 34 Precinct
4295 Broadway
New York, N.Y. 10033

Police Officer Oscar Diaz (Shield # 3012)
Defendant Pro Se
NYPD 34 Precinct
4295 Broadway
New York, N.Y. 10033

Police Officer Carl Bennett (Shield # 29180)

Defendant Pro Se
NYPD 34 Precinct
4295 Broadway
New York, N.Y. 10033

Police Officer Elvin Pichardo (Shield # 4287)
Defendant Pro Se
NYPD 34 Precinct
4295 Broadway
New York, N.Y. 10033

AFFIRMATION OF SERVICE

State of New York

ss.:

County of Kings

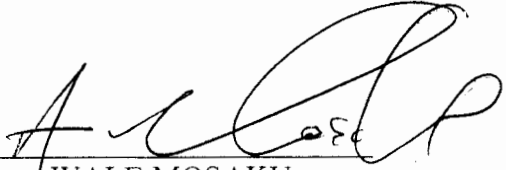
I, the undersigned, an attorney duly admitted to practice in the State of New York, with offices at 25 Bond Street, 3rd Floor, Brooklyn, New York, 11201, affirm as follows as under penalties of perjury pursuant to 28 U.S.C. §1746:

On March 12, 2010, I personally caused to be served the within, AMENDED COMPLAINT.

/XX/ **SERVICE BY FIRST CLASS MAIL:** by serving a copy upon each of the following person(s) at the last known address set forth after each name below.

Maurice Hudson, Esq.
Assistant Corporation Counsel
City of New York Law Department
Attorney(s) for Defendants
CITY OF NEW YORK and POLICE OFFICER JOSE ROSARIO (SHIELD# 2128)
100 Church Street
New York, N.Y. 10007

Dated: Brooklyn, New York
March 12, 2010


WALE MOSAKU

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK:

09 Civ. 8134 (SHS)

ANTHONY CACERES,

Plaintiff(s),

-against-

THE CITY OF NEW YORK, LIEUTENANT JOSEPH
KOURAKOS, POLICE OFFICER JOSE ROSARIO
(SHIELD# 2128), POLICE OFFICER OSCAR DIAZ
(SHIELD# 3012), POLICE OFFICER CARL BENNETT
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OFFICER JAMES GILSON (SHIELD# 8085) and
POLICE OFFICER JOHN DOE 1-5,

Defendant(s) .

AMENDED COMPLAINT

LAW OFFICES OF WALE MOSAKU, P.C.
Attorney(s) for Plaintiff(s)
25 Bond Street, 3rd Floor
Brooklyn, New York 11201
(718) 243-0994

To:

Service of a copy of the within
is hereby admitted.

Dated:..... 200_

Attorney(s) for Defendants
